

Building an evidence-based claim and response

Day 4 · Session 2 | Both sectors | Shared resource

FICTIONAL TRAINING EXERCISE. Use only your assigned role. A role label separates downloads for the exercise; files on this public website are accessible to anyone with the link.

These are FICTIONAL COMPOSITE training scenarios. All institution labels, disputes, mandates and figures in the exercise are invented for learning; they do not describe an actual institution or current Kenyan dispute.

How This Exercise Works

Work in your sector group, split into a worker-side team and an employer-side team. You will have 25 minutes to prepare and then present to the room.

Your task depends on which side you are on	Detail
Worker-side team	Build a claim with a costing, a comparability argument, and a pre-emptive answer to the affordability objection you know is coming.
Employer-side team	Build a funded response that names a specific trade-off. A flat refusal is not an acceptable answer to this exercise.
Both teams	State which budget cycle your proposal lands in, and what monitoring mechanism would make it stick.

Some of you will be arguing the side you do not occupy at work. That is deliberate — it is the fastest way to learn what makes an argument credible to the other side rather than merely satisfying to your own.

The Two Composite Scenarios

PUBLIC HEALTH — MWANGAZA COUNTY (fictional composite)

The employer: Mwangaza County Government, employing about 2,400 health workers across 43 facilities.

The fiscal position: County wage bill stands at about 43% of total county revenue excluding extractive natural resources revenue — above the statutory ceiling of 35%.

The dispute: A risk and hardship allowance was agreed to be introduced in three phases. Phase one was paid.

Phases two and three have stalled for two financial years.

The cost: Completing phases two and three costs about KSh 186 million a year, plus accumulated arrears from the stalled period.

Complicating factors: The allowance was agreed nationally but is paid by counties with very different fiscal capacity.

Two neighbouring counties have completed all three phases; three others have not started.

What the workers say: The agreement was signed, phase one proves it was affordable, and non-payment is a choice.

What the county says: Revenue has not grown as projected, the ceiling is a legal limit rather than a preference, and completing the phases would require cutting something else.

HIGHER EDUCATION — RIVERSIDE TECHNICAL UNIVERSITY (fictional composite)

The employer: Riverside Technical University — about 14,200 students, 780 academic and 1,050 non-academic staff.

The fiscal position: Recurrent budget is 61% exchequer allocation and 39% institutional revenue. Personnel costs are 73% of the recurrent budget.

The dispute: Promotions approved two years ago were implemented on paper but the corresponding pay was applied several months late, creating arrears of about KSh 94 million.

The cost: Clearing arrears in full in one financial year would require about 6% of the institution's annual recurrent budget.

Complicating factors: Institutional revenue is largely committed to operations. The exchequer allocation is set on a cycle the university does not control, and a capital project is mid-delivery.

What the staff say: Promotion was earned and approved; late payment of an approved entitlement is not a budgeting question but a contractual one.

What the university says: It does not dispute the entitlement, only the timetable, and it cannot commit institutional revenue already allocated elsewhere.

Your Working Sheet

1. The core numbers

Item	Your figure, and where it comes from
What is being claimed, in KSh per year	
Arrears, if any	
As a share of the employer's relevant budget	
The measure and denominator you are using	

2. If you are the worker-side team

Element	Your answer
Comparability argument — compared with whom, and why is that comparator fair?	
Cost-of-living argument — over what period, from what source?	
The affordability objection you expect, and your pre-emptive answer	
What you would accept instead of full immediate payment	

3. If you are the employer-side team

Element	Your answer
What you can fund, and from where	
The specific trade-off — what gives way to fund this?	
What you can offer that has little or no cash cost	
What evidence would you provide to show the constraint is genuine?	

4. Both teams — making it stick

Question	Your answer
Which budget cycle does your proposal land in?	
Who must approve it beyond the people in the room?	
What monitoring mechanism would make it enforceable?	
What happens if the money does not arrive on time?	

Debrief Notes — What Made It Credible?

As each group presents, note what actually persuaded you when the argument was coming at you from the other side.

Question 1

Which single element of the other side's case was hardest to answer, and why?

Question 2

What did your own team assert without evidence, that you would need to substantiate in a real negotiation?